

STATE OF NEW YORK

7491--A

Cal. No. 1207

2025-2026 Regular Sessions

IN SENATE

April 17, 2025

Introduced by Sen. BRISPORT -- read twice and ordered printed, and when printed to be committed to the Committee on Judiciary -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the civil practice law and rules, in relation to the statute of limitations for civil actions related to certain deed theft actions, reviving such actions otherwise barred by the existing statute of limitations and granting trial preference to such actions; and to amend the judiciary law, in relation to directing the chief administrator of the courts to promulgate rules for the timely adjudication of certain revived actions

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The civil practice law and rules is amended by adding a new
2 section 214-k to read as follows:

3 § 214-k. Certain deed theft actions. Notwithstanding any provision of
4 law which imposes a period of limitation to the contrary, every civil
5 claim or cause of action brought against any party alleging fraud, frau-
6 dulent inducement, or fraudulent misrepresentation in obtaining the
7 title to a residential dwelling, every civil claim or cause of action
8 alleging a violation of section three hundred forty-nine of the general
9 business law or section two hundred sixty-five-a of the real property
10 law that arise from fraud, fraudulent inducement, or fraudulent misrep-
11 resentation in obtaining the title to a residential dwelling, and every
12 civil claim or cause of action for legal malpractice related to such
13 allegations, which is barred as of the effective date of this section
14 because the applicable period of limitation has expired, is hereby
15 revived, and action thereon may be commenced not earlier than six months
16 after, and not later than one year and six months after the effective
17 date of this section. In any such claim or action, dismissal of a previ-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 ous action ordered before the effective date of this section on grounds
2 that such previous action was time barred, or dismissal of such previous
3 action pursuant to rule thirty-two hundred sixteen of this chapter for
4 failure to prosecute, shall not be grounds for dismissal of a revival
5 action pursuant to this section.

6 § 2. Paragraph 7 of subdivision (a) of rule 3403 of the civil practice
7 law and rules, as amended by chapter 203 of the laws of 2022, is amended
8 to read as follows:

9 7. any action which has been revived pursuant to section two hundred
10 fourteen-g ~~[or]~~, two hundred fourteen-j, or two hundred fourteen-k of
11 this chapter.

12 § 3. The judiciary law is amended by adding a new section 219-f to
13 read as follows:

14 § 219-f. Rules reviving certain actions; deed theft. The chief admin-
15 istrator of the courts shall promulgate rules for the timely adjudi-
16 cation of revived actions brought pursuant to section two hundred four-
17 teen-k of the civil practice law and rules.

18 § 4. The provisions of this act shall be severable, and if any clause,
19 sentence, paragraph, subdivision or part of this act shall be adjudged
20 by any court of competent jurisdiction to be invalid, such judgment
21 shall not affect, impair, or invalidate the remainder thereof, but shall
22 be confined in its operation to the clause, sentence, paragraph, subdivi-
23 sion or part thereof directly involved in the controversy in which
24 such judgment shall have been rendered.

25 § 5. This act shall take effect immediately; provided, however, that
26 section three of this act shall take effect three months after this act
27 shall have become a law.